



AN ACT REVISING EDUCATION LAWS RELATED TO EXTRACURRICULAR PARTICIPATION; ALLOWING SCHOOL DISTRICTS OR ATHLETIC ORGANIZATIONS TO RESTRICT EXTRACURRICULAR PARTICIPATION OF HOME SCHOOL STUDENTS WHO ARE NOT CITIZENS OF THE UNITED STATES OR RESIDENTS OF MONTANA; AMENDING SECTION 20-5-112, MCA; AND PROVIDING AN IMMEDIATE EFFECTIVE DATE.

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

**Section 1.** Section 20-5-112, MCA, is amended to read:

**"20-5-112. Participation in extracurricular activities.** (1) (a) A-Except as provided in subsection (1)(b), a school district or an athletic association, conference, or organization with authority over interscholastic sports may not prohibit or restrict the ability of a student attending a nonpublic or home school meeting the requirements of 20-5-109 from participating in extracurricular activities at a school in the student's resident school district solely on the student's enrollment at the public school or on the number of hours the student physically attends the public school.

(b) A school district or an athletic association, conference, or organization with authority over interscholastic sports may prohibit or restrict the participation in extracurricular activities of a student attending a home school based on one or both of the following factors:

- (i) the student's status as a United States citizen; and
- (ii) the student's status as a Montana resident, as determined under the provisions of 1-1-215.

(2) Except as provided in subsections (1) and (3), a student attending a nonpublic or home school who participates in extracurricular activities at a public school is subject to:

(a) the same standards for participation as those required of full-time students enrolled in the school;

(b) the same rules of any interscholastic organization of which the school of participation is a member.

(3) (a) The academic eligibility for extracurricular participation for a student attending a nonpublic school must be attested by the head administrator of the nonpublic school.

(b) The academic eligibility for extracurricular participation for a student attending a home school must be attested in writing by the educator providing the student instruction with verification by the school principal. The verification may not include any form of student assessment."

**Section 2. Effective date.** [This act] is effective on passage and approval.

- END -

I hereby certify that the within bill,  
SB 350, originated in the Senate.

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Secretary of the Senate

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President of the Senate

Signed this \_\_\_\_\_ day  
of \_\_\_\_\_, 2025.

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Speaker of the House

Signed this \_\_\_\_\_ day  
of \_\_\_\_\_, 2025.

SENATE BILL NO. 350

INTRODUCED BY M. REGIER

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